

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

August 24, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

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50.	Orthopaedic Specialty Institute Medical Group of Orange County v. OCA Care of CA, LLC 2025-01483911	Gary S. Pancer, Sam A. Goli, and Wilson Elser Moskowitz Edelman & Dicker LLP motion to be relieved as counsel for OCA Care of CA, LLC, is CONTINUED to September 28, 2026 at 2:00 p.m. in Department C28. There is no proof of service on the client. (Cal. Rules of Court, Rule 3.1362, subd. (d).) Moving parties shall serve all moving papers on the client, along with a notice of continuance on the client and all parties who have appeared, and shall file proof of service of same, no later than Friday 8/28/26. Moving parties shall give notice of this ruling.
51.	Valvano v. Hurtado 2025-01515962	Attorneys Richard N. Asfar and Adams & Reese, LLP's motion to be relieved as counsel for defendant Jeffrey B. Moreno is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) This order shall become effective upon the filing of the proof of service of the executed order on defendant Moreno. Moving counsel shall give notice of this ruling.
52.	Sunwest Bank v. Encino Towers, LLC 2023-01329501	Anthony O. Egbase, Esq. and A.O.E. Law & Associates, Inc.'s motion to be relieved as counsel of record for Grove Hospice Care, Inc. is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) This order shall become effective upon the filing of the proof of service of the executed order on Grove Hospice Care, Inc. An order to show cause is set for October 2, 2026 at 9:00 a.m. in Department C28. At the hearing, the Court will strike the answer and enter default for defendant Grove Hospice Care, Inc. for their failure to appear through counsel unless they (a) substitute in new counsel before the hearing or (b) appear at the hearing and show good cause otherwise. (<i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal. App. 4th 1141, 1146 [holding that a corporation must appear through counsel]; <i>Van Gundy v. Camelot Resorts, Inc.</i> (1983) 152 Cal. App. 3d Supp. 29, 31-32 [court should enter default for corporation that fails to appear through counsel].) Moving counsel shall give notice of this ruling.
53.	Donovan v. Taft	Gina M. Austin, Esq., Tamara Rozmus, Esq., and Austin Legal Group, APC's motion to be relieved as counsel of record for defendant Robert Taft is CONTINUED to October 5, 2026 at 2:00 p.m. in this department.

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	2021-01225158	There is no proof of service of the moving papers on the client or anyone else. "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." (Cal. Rules of Court, rule 3.1362(d).) While the supporting attorney declaration states that counsel has served the client via mail, this attestation alone is not sufficient to satisfy the service by mail requirements of Code of Civil Procedure section 1013, subdivision (a), or the proof of service requirements of Code of Civil Procedure section 1013a. Moving counsel is ORDERED to (1) properly serve all moving papers, including notice of the continued hearing date above, on the client and all other parties who have appeared in the case; and (2) file proof of service of the same, by no later than Friday 8/28/26. Moving counsel shall give notice of this ruling.
54.	City of Huntington Beach v. Willard Marine, Inc. 2026-01547404	Defendant Willard Marine, Inc.'s motion to strike portions of the Complaint is DENIED. (Code Civ. Proc., §§ 435, 436 [authorizing motion].) Moving party shall file an Answer to the Complaint within 10 days. No point is served in striking a prayer for attorney fees, as "there [is] no requirement they be pled at all." (<i>Snatchko v. Westfield LLC</i> (2010) 187 Cal.App.4th 469, 497.) The Complaint alleges sufficient facts supporting the validity of the challenged liquidated damages provision (Complaint, ¶ 14), which allegations are presumed correct. (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255 ["In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth"].) Whether the liquidated damages provision is valid, or an unenforceable penalty, requires an examination of "the <u>actual circumstances</u> of a liquidated damages clause." (Civ. Code, § 1671, subd. (b); <i>Graylee v. Castro</i> (2020) 52 Cal.App.5th 1107, 1114, emphasis added; see also <i>Krechuniak v. Noorzoy</i> (2017) 11 Cal.App.5th 713, 722 ["demonstrating the provision is unreasonable requires <u>consideration of existing circumstances relevant to the formation of the contract</u> ... the parties' intent should be derived from the entire agreement and its surrounding circumstances;" emphasis added, internal citations omitted.) Thus, the validity of the liquidated damages provision cannot be determined in the context of a

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		motion to strike, where the allegations in the Complaint are presumed to be true. The case management conference is continued to February 8, 2027 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
55.	Simpson v. A Mission for Michael Inc. 2025- 01504467	<u>Demurrer to Third Amended Complaint</u> Defendant A Better Life Recovery LLC dba A Mission for Michael's (AMFM) demurrer to third amended complaint is OVERRULED. AMFM shall answer the third amended complaint (TAC) within 10 days. The TAC states facts sufficient to constitute the first and third causes of action for dependent adult abuse and wrongful death. (See <i>Covenant Care, Inc. v. Superior Court</i> (2004) 32 Cal.4th 771, 783 [dependent adult abuse based on neglect, elements]; <i>Carter v. Prime Healthcare Paradise Valley LLC</i> (2011) 198 Cal.App.4th 396, 406-407 (<i>Carter</i>) [same]; see <i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 155; Welf. & Inst. Code, §§ 15610.57, subds. (a)(1), (b) [neglect]; <i>Quiroz v. Seventh Ave. Center</i> (2006) 140 Cal.App.4th 1256, 1263 [wrongful death, elements].) Contrary to AMFM's contentions, the TAC adequately alleges the decedent was a "dependent adult" within the meaning the Elder Abuse and Dependent Adult Civil Protection Act (Act), and that AMFM was a "care custodian." (See Welf. & Inst. Code, § 15610.23, subd. (a) [dependent adult]; <i>id.</i>, § 15610.17, subds. (j), (y) [care custodian]; Health & Saf. Code, § 1502, subd. (a)(7); see also TAC ¶¶ 16-17, 24, 26-28.) The TAC also adequately alleges AMFM acted with "recklessness." (See <i>Carter, supra</i>, 198 Cal.App.4th at p. 407 [recklessness]; <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-32 ["Recklessness, unlike negligence, involves more than 'inadvertence, incompetence, unskillfulness, or a failure to take precautions' but rather rises to the level of a 'conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.' "]; CACI No. 3113 [under the Act, "recklessness" means the defendant "knew it was highly probable that [its] conduct would cause harm and [it] knowingly disregarded this risk"].) The TAC alleges AMFM

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		knew it was highly probable that the failure to provide decedent with 24-hour supervision would cause plaintiff serious harm/death, but that it consciously disregarded this risk and left him unsupervised instead. (See TAC ¶¶ 3, 16, 19, 26, 29, 55-56.) <u>Motion to Strike Portions of Third Amended Complaint</u> Defendant A Better Life Recovery LLC dba A Mission for Michael's motion to strike portions of third amended complaint is DENIED. The motion is procedurally defective. (See Cal. Rules of Court, rule 3.1322 ["A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense."]; see also Ntc. of Mtn. & Mtn, pp. 1-3.) The case management conference is continued to February 8, 2027 at 9:00 a.m. in Department C28. Defendant shall give notice of all of the above.
56.	Castillo v. Target Corporation 2024-01423525	Plaintiff Sandra Castillo's motion to set aside dismissal is GRANTED. (Code Civ. Proc., § 473, subd. (b) [mandatory relief based on attorney affidavit of fault]; Degani Decl., ¶¶ 6-8; see also <i>Zamora v. Clayborn Contracting Group, Inc.</i> (2002) 28 Cal.4th 249, 257 [mandatory relief even where attorney fault is "inexcusable"].) The court VACATES the 10-13-25 and 12-4-25 orders dismissing this action without prejudice. Defendant's request for judicial notice is GRANTED. The court sets a Case Management Conference for February 8, 2027 at 9:00 a.m. in Department C28. Moving party shall give notice of this ruling.
57.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	Petitioners Matthew R. Silver's petition for an award of reasonable attorney's fees incurred in enforcing the judgment is GRANTED. Code of Civil Procedure § 685.040 entitles a judgment creditor to reasonable fees and costs incurred by enforcing a judgment "if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5."

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		Section 1033.5(a)(10)(A) allows for the award of attorney's fees when authorized by contract. "Thus, there are two requirements before a motion for an award of postjudgment attorney fees may be awarded as costs: (1) the fees must have been incurred to 'enforce' a judgment; and (2) the underlying judgment had to include an award for attorney fees pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), which provides that attorney fees may be awarded when authorized by contract." <i>Nash v. Aprea</i> (2023) 96 Cal. App. 5th 21, 28 (citations omitted). Here, the parties arbitrated their dispute based on a clause in their partnership agreement. (ROA 250, Exh. A). The parties further agreed, pursuant to the rules of the arbitral forum, that the arbitrator would determine what attorney's fees to award to the prevailing party in that dispute. That is, the arbitration arose from contract. The judgment includes an award of attorney's fees. (ROA 78). As a result, petitioner is entitled to reasonable attorney's fees expended in enforcing the judgment. The court has reviewed the submittals reflecting the hours sought. The court has reduced the fee request by excluding time spent on activity related to the appointment of a receiver, as that motion was filed after the notice of appeal had been filed which divested this court of jurisdiction. The court has further reduced certain hours based on inefficiencies reflected in the entries. The fees excluded by the court were not expended in enforcing the judgment. The court awards petitioner \$56,203.14 in reasonable attorney's fees and costs. The court declines to award a multiplier. Petitioner shall give notice of this ruling.
58.		
59.	TALG, LTD. v. Ton 2026- 01552440	Defendant Alessandria Jones Ton's, in pro per, Special Motion to Strike is DENIED. <u>Procedural Issues</u> Plaintiff objects to the form of the motion arguing that it is not in conformance with Rule 3.1113(b), which provides that "[a] memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and

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		a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (CRC, Rule 3.1113(b).) Defendant’s case citation is also not in conformance with the Rules of Court as it provides only the case name as opposed to the official report volume and page number and year of decision. Additionally, there is no proof of service filed with the court for the motion or RJN. While Defendant’s motion may suffer from some procedural flaws, the motion provides enough information and authority in which to evaluate her argument, as evidenced by Plaintiff’s opposition to the merits of the motion. Moreover, by responding to the merits of the motion, Plaintiff has waived any argument regarding lack of notice. <u>Defendant’s Request for Judicial Notice</u> is DENIED. The court cannot determine whether they qualify under Evidence Code §§ 452-453 as no exhibits were attached to the notice. <u>Legal Standard Generally on an Anti-SLAPP Motion</u> On or about December 8, 2025, Defendant published the challenged statements in writing on Plaintiff’s public Yelp business page. Approximately one month later, Defendant affirmatively republished part of the same content by uploading a screenshot of the Yelp Review to the “Photos & Videos” section of the Firm’s Yelp page. On March 3, 2026, Plaintiff filed the instant complaint alleging a cause of action for defamation and trade libel. Defendant now moves to strike the Complaint under California’s anti-SLAPP statute. Code of Civil Procedure section 425.16 provides: “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).) “Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.... If the court

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		finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim.” (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) “Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning and lacks even minimal merit – is a SLAPP, subject to being stricken under the statute.” (<i>Id.</i> at 89.) 1. <u>Step One – Protected Activity</u> “The sole inquiry under the first prong of the anti-SLAPP statute is whether the plaintiff’s claims arise from protected speech or petitioning activity. [Citation.] Our focus is on the principal thrust or gravamen of the causes of action, <i>i.e.</i>, the allegedly wrongful and injury-producing conduct that provides the foundation for the claims.” (<i>Castleman v. Sagaser</i> (2013) 216 Cal.App.4th 481, 490–491.) “At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. . . If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached.” (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 396.) There are four categories of protected speech for an anti-SLAPP motion (Code Civ. Proc., § 425.16(e)): 1. Statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; 2. Statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; 3. Statements made in a place open to the public or a public forum in connection with an issue of public interest; 4. Any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. Defendant’s motion appears to be based on the third category. “For purposes of the third category in subdivision (e) of section 425.16, a “public forum” is traditionally defined as a place that is open to the public where information is freely exchanged.’ [Citation.]” (<i>Lee v. Silveira</i> (2016) 6 Cal.App.5th 527, 539, citing <i>Damon v. Ocean Hills Journalism Club</i> (2000)

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		85 Cal.App.4th 468, 475.) Yelp.com is unquestionably a "public form." (<i>Wong v. Tai Jing</i> (2010) 189 Cal.App.4th 1354, 1367.) Thus, the pertinent question here is whether Defendant's statements were made "in connection with an issue of public interest." (Code Civ. Proc., § 425.16, subd. (e)(3); see <i>id.</i>, § 425.16, subd. (e)(4).) "Not surprisingly, we have struggled with the question of what makes something an issue of public interest." (<i>Rand Resources, LLC v. City of Carson</i> (2019) 6 Cal.5th 610, 621 (<i>Rand</i>).) Courts have recognized three categories of statements or conduct that qualify as "public interest": (1) statements or conduct that concern a person or entity in the public eye; (2) statements or conduct that could directly affect a large number of persons beyond the direct participants; and (3) statements or conduct involving a topic of widespread interest. (<i>Rand, supra</i>, 6 Cal.5th at p. 621; <i>Woodhill Ventures, LLC v. Yang</i> (2021) 68 Cal.App.5th 624, 631-632.) The caselaw has come out everywhere on the issue of whether a consumer review constitutes a statement made in connection with "an issue of public interest." (See, e.g., <i>Yang v. Tenet Healthcare Inc.</i> (2020) 48 Cal.App.5th 939, 947 (<i>Yang</i>) [whether a local healthcare provider's qualifications, competence, professional ethics are deficient is a public issue]; <i>Healthsmart Pacific, Inc. v. Kabateck</i> (2016) 7 Cal.App.5th 416, 429 (<i>Healthsmart Pacific</i>) ["members of the public, as consumers of medical services, have an interest in being informed of issues concerning particular doctors and health care facilities"]; <i>Dual Diagnosis Treatment Center, Inc. v. Buschel</i> (2016) 6 Cal.App.5th 1098, 1105 ["The licensing status of a single rehabilitation facility is not of 'widespread, public interest'"].) However, the critical distinction between these cases often turns on whether the focus of the speech concerns matters that go beyond the speaker's particular interactions with the business or a private dispute. (See <i>Woodhill, supra</i>, 68 Cal.App.5th at p. 634-636 [distinguishing cases, noting "[d]ecisions generally have extended protection, however, only when the 'consumer information' goes beyond recounting a one-time dispute between a buyer and a seller"].) Here, the December 8, 2025, Yelp review goes beyond a private one-time interaction with Plaintiff or Defendant's dissatisfaction with Plaintiff's services. It warns the general public of defendant's professional competence and ethics as

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		an attorney. (Complaint, Ex. 3) It claims an attorney does not sympathize with women, will not show interest in your case, acts like a bully and is very unprofessional. Defendant claims Plaintiff colluded with her ex-husband's attorney, abandoned her and dropped her as a client, and left her traumatized. Defendant also warns the public not to waste their time hiring Talg law firm. "The public interest requirement of [the anti-SLAPP statute] must be ` "construed broadly" so as to encourage participation by all segments of our society in vigorous public debate related to issues of public interest.' [Citation.] The Legislature inserted the 'broad construction' provision out of concern that judicial decisions were construing that element of the statute too narrowly." (<i>Gilbert v. Sykes</i> (2007) 147 Cal.App.4th 13, 23; Code Civ. Proc., § 425.16, subd. (a) ["The Legislature finds and declares that it is in the public interest to encourage continued participation in matters of public significance, and that this participation should not be chilled through abuse of the judicial process. To this end, this section shall be construed broadly."].) A licensed medical provider's substandard care is a matter of public interest, and statements that warn of such care should be protected "so as to encourage participation by all segments of our society in vigorous public debate related" to such care. (See <i>ibid.</i>) While most of the post relates to Defendant's personal dissatisfaction with Plaintiff's services, her statements claiming Plaintiff provided substandard services and warning the public of such conduct makes this a public interest. Accordingly, Defendant has met her burden to show the complaint arises from protected activity. 2. Step Two - Probability Of Prevailing "If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a summary-judgment-like procedure. The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. Claims with the requisite minimal merit may proceed." (<i>Baral</i> 1 Cal.5th at 384-85 (cleaned up).)

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		The Complaint alleges causes of action for defamation and trade libel. Defamation "The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage." (<i>Sanders v. Walsh</i> (2013) 219 Cal.App.4th 855, 862 [citations omitted].) "The sine qua non of recovery for defamation ... is the existence of falsehood. Because the statement must contain a provable falsehood, courts distinguish between statements of fact and statements of opinion for purposes of defamation liability. Although statements of fact may be actionable as libel, statements of opinion are constitutionally protected." (<i>McGarry v. University of San Diego</i> (2007) 154 Cal.App.4th 97, 112, (<i>McGarry</i>) [cleaned up].) "That does not mean that statements of opinion enjoy blanket protection. On the contrary, where an expression of opinion implies a false assertion of fact, the opinion can constitute actionable defamation. The critical question is not whether a statement is fact or opinion, but whether a reasonable fact finder could conclude the published statement declares or implies a provably false assertion of fact." (<i>Wong, supra</i>, 189 Cal.App.4th at p. 1370 [cleaned up].) Therefore, statements that cannot reasonably be interpreted as stating actual facts about an individual or entity that are provably false cannot form the basis of a defamation action. (<i>Ferlauto v. Hamsher</i> (1999) 74 Cal.App.4th 1394, 1401.) Accordingly, rhetorical hyperbole, vigorous epithets, imaginative expressions of contempt, and loose, figurative language are constitutionally protected. (<i>Ibid.</i>) "An opinion is not actionable if it discloses all the statements of fact on which the opinion is based and those statements are true. An opinion is actionable if it discloses all the statements of fact on which the opinion is based and those statements are false." (<i>Integrated Healthcare Holdings, Inc. v. Fitzgibbons</i> (2006) 140 Cal.App.4th 515, 527 (<i>Integrated Healthcare</i>) [cleaned up].) "In determining whether the disputed statement communicates or implies a provably false assertion of fact, we look at the totality of the circumstances, looking first to the language of the statement and whether it was understood in a defamatory sense, and then considering the context in which the statement was made. [Citation.] We focus not on the literal truth or falsity of each word in a statement, but rather on ' " 'whether the "gist or sting" of the statement is true or false, benign or defamatory, in substance.' " ' [Citations.] We also consider whether the

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		reasonable or “average” reader would so interpret the material. [Citations.] The “average reader” is a reasonable member of the audience to which the material was originally addressed.’ ” (<i>Edward v. Ellis</i> (2021) 72 Cal.App.5th 780, 790-791.) Statements made in the Yelp review by Defendant are as follows: 1) Plaintiff colluded with opposing counsel in forcing Defendant and her children out of the house for it to be sold; 2) Plaintiff abandoned Defendant for six months; and 3) recorded a lien for nothing. As to the allegation re collusion with her ex-husband’s attorney in forcing Defendant and her children out of the house, Plaintiff points out that Defendant’s Motion identifies her address as 4248 Cedral Street, Acton, California, the same property identified in the Stipulation and Order concerning the community-property residence that she allegedly was kicked out of. Such evidence demonstrates that the statement could be provably false. Regarding Defendant’s allegation that Plaintiff “abandoned” her for six months, Plaintiff directs the court to the itemized bills attached to the Complaint as Exhibit 2, which reflect work being performed during the relevant timeframe. Therefore, Defendant’s statement that she was abandoned may be provably false. The Yelp review also states: “I was convinced by her that she will keep fighting for me and put a lien on my house for \$50K for NOTHING.” (Complaint, Ex. 3.) Plaintiff submits a Family Law Attorney’s Real Property Lien executed by Defendant to demonstrate the lien was to secure payment of Plaintiff’s bills arising from legal services, and not for “nothing.” Defendant agreed to the lien for payment of Plaintiff’s legal fees. This is sufficient evidence to demonstrate the statement is provably false. Based on the foregoing, Plaintiff has established a probability of prevailing on its defamation claim. Trade Libel Trade libel is the intentional disparagement of the quality of services of a business that results in pecuniary damages to the plaintiff. (<i>City of Costa Mesa v. D’Alessio Investments, LLC</i>, (2013) 214 Cal.App.4th 358, 375-76.) In order to demonstrate trade libel, a plaintiff must show three things: (1) there was a false statement of fact; (2) the statement was made with actual malice, the knowledge the statement was false or with reckless disregard of whether it was true or false;

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